

Lease No. DACA33-5-xx-xxx
City, State

Replaces: DACA33-5-xx-xxx

**U.S. GOVERNMENT
LEASE for PARKING**

LEASE DATE:
LEASE NO. DACA33-5-xx-xxx

POC: _____
Phone: _____
E-mail: _____

THIS LEASE, is made and entered into this the _____ day of _____
by and between the _____, whose address is _____,
hereinafter called the **Lessor**, and the **United States of America**, hereinafter called the
Government.

WITNESSETH. The parties hereto for the considerations hereinafter mentioned,
covenant and agree as follows:

1. LOCATION OF LEASED PREMISES. The Lessor hereby leases to the Government
the following described premises:

Indoor parking space with 24-hour access, seven days a week for _____ U.S.
Government vehicles assigned to **U.S. Armed Forces Recruiting Offices** located at
_____. Spaces shall be issued for the
below designated official Government vehicles:

_____ indoor parking spaces for the _____ Career Center located at
_____.

Respective Service shall supply make, model, and license number for each
vehicle.

2. TO HAVE AND TO HOLD the said premises with their appurtenances for the term
beginning _____ through _____, subject to termination rights as may be
hereafter set forth. The Government's obligation and legal liability for performance of
this lease beyond **30 September 2023** is contingent upon the availability of annually
appropriated funds. Nothing in this lease shall constitute, or be deemed to constitute,
an obligation of future appropriations by the United States or considered as implying
that Congress will appropriate additional funds.

3. RENTAL CONSIDERATION. The Government shall pay the Lessor **annual rent of**
\$_____ at the rate of **\$_____ per month**, in arrears. Rent for a lesser period

shall be prorated. Rent shall be made by electronic funds transfer and payable to: _____ to the account of _____. Payment of rent shall be made at the end of every month by the F&A Officer, USACE Finance Center, 5270 Integrity Drive, Millington, TN 38054-5005.

4. TERMINATION. The Government may terminate this lease in whole or in part at any time on or after _____ by giving at lease **thirty (30) days'** notice in writing to the Lessor and no rental shall accrue after the effective date of termination. Said 30-day period shall be computed commencing with the day after the date of delivery of notice.

5. TERMS AND CONDITIONS. The Lessor shall furnish and maintain to the Government as part of the rental consideration the following:

a. Undesignated indoor parking with in and out privileges twenty-four hours a day, seven days a week.

b. One access card or sticker for each Government vehicle parking space covered under this lease.

c. Sufficient lighting of premises to permit ingress and egress of vehicles without danger of injury to person or damage to vehicles.

d. Maintain the leased premises in good repair and in a clean condition free of trash, debris, snow, and ice.

~~6. If the Lessor does not permit drivers of the vehicles to park and to obtain their vehicles, the Lessor shall provide attendants for such purposes.~~

7. The Lessor shall comply with State and local fire prevention and protection standards and with standards of the National Board of Fire Underwriters for storage and handling of gasoline, and shall show upon demand of the Government's Contracting/Realty Officer or his/her authorized representative, evidence of the Lessor's compliance.

8. NOTICE.

a. Any notice under the terms of this lease may be given by "Certified Mail – Return Receipt Requested" or any other appropriate method, and delivery or attempted delivery shall be deemed notice under the terms of this lease. Any notice given by the Lessor to the Government shall be addressed to: U.S. Army Engineer District, New England, Attn: Chief, Real Estate Division, 696 Virginia Road, Concord, Massachusetts 01742-2751. Any notice given by the Government to the Lessor, or his Agent, shall be addressed to:

_____.

b. The Lessor, by written notice to the Government, will furnish notification of any change of address, ownership of property, name of new Lessor or line of succession. Such notice shall be provided at least 30 days prior to said change. The Government shall not be liable for any rental paid to the Lessor and/or agent herein specified until such notice is provided and acted upon by the Government.

9. APPLICABLE CODES AND ORDINANCES. The Lessor, as part of the rental consideration, agrees to comply with all codes and ordinances applicable to the ownership and operation of the building/land in which the leased space is situated and, at his own expense, to obtain all necessary permits and related items.

10. DAMAGE BY FIRE OR OTHER CASUALTY. If the said premises be destroyed by fire or other casualty this lease shall immediately terminate. In case of partial destruction or damage, so as to render the premises untenable, as determined by the Government, the Government may terminate the lease by giving written notice to the Lessor within fifteen (15) days thereafter; if so terminated no rent shall accrue to the Lessor after such partial destruction or damage; and if not so terminated the rent shall be reduced proportionately by supplemental agreement hereto effective from the date of such partial destruction or damage.

11. PUBLIC LAWS. This transaction is not affected by Title 10 USC 2662 as amended by Section 511 Public Law 86-500, 86th Congress.

12. ASSIGNMENT OF CLAIMS. Pursuant to the provisions of the Assignment of Claims Act of 1940, as amended (31 U.S.C. 3727, 41 U.S.C 6305), if this lease provides for payments aggregating \$1,000 or more, claims for monies due or to become due the Lessor from the Government under this contract may be assigned to a bank, trust company, or other financing institution, including any Federal lending agency, and may thereafter be further assigned or reassigned to any such institution. Any such assignment or reassignment shall cover all amounts payable under this contract and not already paid, and shall not be made to more than one party, except that any such assignment or reassignment may be made to one party as agent or trustee for two or more parties participating in such financing.

Notwithstanding any provisions of this contract, payments to an assignee of any monies due or to become due under this contract shall not, to the extent provided in said Act, as amended, be subject to reduction or off-set.

13. GRATUITIES TO GOVERNMENT EMPLOYEES.

a. The Government may, by written notice to the Lessor, terminate the right of the Lessor to proceed under this lease if it is found, after notice and hearing, by the Secretary of the Army or his duly authorized representative, that gratuities (in the form of entertainment, gifts, or otherwise) were offered or given by the Lessor, or any agent

or representative of the Lessor, to any officer or employee of the Government with a view toward securing a lease or securing favorable treatment with respect to the awarding or amending or the making of any determinations with respect to the performing of such lease; provided that the existence of facts upon which the Secretary of the Army or his duly authorized representative makes such findings shall be an issue and may be reviewed in any competent court.

b. In the event this lease is terminated as provided in paragraph (A) hereof, the Government shall be entitled (1) to pursue the same remedies against the Lessor as it could pursue in the event of breach of the lease by the Lessor, and (2) as a penalty in addition to any other damages to which it may be entitled by law, exemplary damages in an amount (as determined by the Secretary of the Army or his duly authorized representative) which shall be not less than three nor more than ten times the cost incurred by the Lessor in providing any such gratuities to any such officer or employee.

c. The rights and remedies of the Government provided in this clause shall not be exclusive and are in addition to any other rights and remedies provided by law or under this lease.

14. OFFICIALS NOT TO BENEFIT. No Member of or Delegate to Congress, or Resident Commissioner shall be admitted to any share or part of this lease contract or to any benefit that may arise therefrom; but this provision shall not be construed to extend to this lease contract if made with a corporation for its general benefit.

15. COVENANT AGAINST CONTINGENT FEES. The Lessor warrants that no person or selling agency has been employed or retained to solicit or secure this lease upon an agreement or understanding for a commission, percentage, brokerage, or contingent fee, excepting bona fide employees or bona fide established commercial or selling agencies maintained by the Lessor for the purpose of securing businesses.

For breach or violation of this warranty the Government shall have the right to annul this lease without liability or in its discretion to deduct from the rental price or consideration or otherwise recover the full amount of such commission, percentage, brokerage or contingent fee. (Licensed real estate agents or brokers having listings on property for rent, in accordance with general business practice, and who have not obtained such licenses for the sole purpose of effecting this lease, may be considered as bona fide employees or agencies within the exception contained in this clause.)

16. DISPUTES.

a. This contract is subject to the Contract Disputes Act of 1978. Except as provided in the Act, all disputes arising under or relating to this contract shall be resolved under this clause.

b. "Claim", as used in this clause, means a written demand or written assertion by one of the contracting parties seeking, as a matter of right, the payments of money in a sum certain, the adjustment or interpretation of contract terms, or other relief arising under or relating to this contract.

c. A claim arising under a contract, unlike a claim relating to that contract, is a claim that can be resolved under a contract clause that provides for the relief sought by the claimant. However, a written demand or written assertion by the Contractor seeking the payment of money exceeding \$100,000 is not a claim under the Act until certified as required by the following paragraph. A voucher, invoice or other routine request for payment that is not in dispute when submitted is not a claim under the Act. The submission may be converted to a claim under the Act by complying with the submission and certification requirements of this clause, it is disputed either as to a liability or amount or is not acted upon in a reasonable time.

d. A claim by the Contractor, shall be made in writing and submitted to the Contracting officer for a written decision. A claim by the Government against the Contractor shall be subject to a written decision by the Contracting Officer. For contractor claims exceeding \$100,000, the Contractor shall submit with the claim a certification that the claim is made in good faith, supporting data are accurate and complete to the best of the Contractor's knowledge and belief and amount requested accurately reflects the contract adjustment for which the Contractor believes the Government is liable.

e. If the Contractor is an individual, the certification shall be executed by the individual. If the Contractor is not an individual, the certification shall be executed by a senior company official in charge at the Contractor's plant or location involved or an officer or general partner of the Contractor having overall responsibility for the conduct of the Contractor's affairs.

f. For the Contractor claims of \$100,000 or less, the contracting Officers must, if requested in writing by the Contractor, render a decision within 60 days of the request. For Contractor certified claims over \$100,000, the contracting Officer must, within 60 days, decide the claim or notify the Contractor of the date of which the decisions will be made.

g. The Contracting Officer's decision shall be final unless the Contractor appeals or files a suit as provided in the Act.

h. The Government shall pay interest on the amount found due and unpaid from (1) the date the Contracting Office received the claim (property certified if required) or (2) the date payment otherwise would be due, if that date is later, until the date of payment. Simple interest on claims shall be paid at the rate, fixed by the Secretary of the Treasury as provided in the Act, which is applicable to the period during which the

Contracting officer received the claim and then at the rate applicable for each 6-month period as fixed by the Treasury Secretary during the pendency of the claim.

i. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any request for relief, claim, appeal or action arising under the contract and comply with any decision of the Contracting Officer.

17. EXAMINATION OF RECORDS.

a. The Lessor agrees that the Comptroller General of the United States or any of his duly authorized representatives shall, until the expiration of 3 years after final payment under this lease, have access to and the right to examine any directly pertinent books, documents, papers, and records of the Lessor involving transactions related to this lease.

b. The lessor further agrees to include in all his subcontracts hereunder a provision to the effect that the subcontractor agrees that the Comptroller General of the United States or his representatives shall, until the expiration of 3 years after final payment under this lease with the Government have access to and the right to examine any directly pertinent books, documents, papers, and records of such subcontractor involving transactions related to the subcontract.

18. LESSOR'S SUCCESSORS. The terms and provisions of this lease and the conditions herein shall bind the Lessor, and the Lessor's heirs, executors, administrators, successors and assigns.

19. INSTRUCTIONS. Whenever the lease is executed by an attorney, agents, or other person, or corporation on behalf of the Lessor, the name of the Lessor shall appear above the signature of the person assigning.

20. PROCUREMENT AUTHORITY. The supplies and services to be obtained by this instrument are authorized by, are for the purpose set forth in and are chargeable to Procurement Authority Number quoted below, the available balance of which is sufficient to cover cost of same:

23 8 2023 08 8032 131079R0 S19016 6351FK/232Z

The Government's obligation hereunder is made contingent upon Congress enacting appropriations and subject to availability of funds.

21. TELECOMMUNICATIONS AND VIDEO EQUIPMENT

a. Exhibit A, Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (AUG 2019), is attached hereto and made a part hereof.

Lease No. DACA33-5-xx-xxx
City, State

b. Exhibit B, General Clause Addendum to the Lease (08/19), is attached hereto and made a part hereof.

IN WITNESS WHEREOF, the parties hereto have subscribed their names as of the date above written.

Lessor:

Witness

BY: _____
Name

Title

Address

DATE: _____

UNITED STATES OF AMERICA

BY: _____
Maureen B. Davi
Realty Specialist
Real Estate Contracting Officer

DATE: _____